Aarti Singal vs Serious Fraud Investigation Office on 5 April, 2023

Author: Dinesh Kumar Sharma

Bench: Dinesh Kumar Sharma

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* IN THE HIGH COURT OF DELHI AT NEW DELHI
\+ CRL.M.C. 4330/2022
AARTI SINGAL ....
Through: Ms. Ranjana Roy Gawai w
Mr.Ujjwal Jain, Ms. Sha
Kashyap and Mr. Vijay P
Advocates.
versus

SERIOUS FRAUD INVESTIGATION OFFICE ....
Through: Mr. Kirtiman Singh, CGS
Ms.Vidhi Jain, Advocate
CORAM:
HON'BLE MR. JUSTICE DINESH KUMAR SHARMA
ORDER

% 05.04.2023 CRL.M.A. 3956/2023 (seeking modification of order dated 19.01.2023)

1. Present application has been moved for modification of order dated 19.01.2023 vide which this order modified the bail order dated 28.03.2022, passed by the learned Trial Court. In order dated 28.03.2022, the learned Trial Court had directed that the applicant/accused shall not go out of NCR of Delhi without the permission of the Court. This Court vide order dated 19.01.2023 modified the condition to the extent that the petitioner shall intimate the Court in case of travelling beyond NCR and within the country.

2. Learned counsel for the petitioner submits that informing the Court for travelling beyond NCR is an onerous condition. Learned counsel submits that in any case the passport of the petitioner is with the Department and she is not at flight risk and therefore the condition imposed by the learned Trial Court and modified by this Court may be waived.

3. Learned counsel for the respondent has vehemently opposed the same. Learned counsel for the respondent submits that this Court has already diluted the condition of the bail vide order dated 19.01.2023 and there is no need for further relaxation.

4. I have considered the submissions. As this Court has already expressed its view in the order dated 19.01.2023 that excessive condition should not be imposed while granting bail/suspension of sentence. Sometimes there are travel plans made suddenly or at the nick of time and in such a case I consider that imposition of a condition for information to the Trial Court for travelling within the

country may be impractical and may become too inconvenient. Even otherwise in this age of technology wherever a person travels, leaves so much footprints that it can be traced easily. I consider that in this world of fast pace, the facts of the case would demand that such a condition is onerous. It goes without saying that the passport of the petitioner is already with the Department and she cannot leave the country without the permission of the Court.

5. Accordingly, the present application stands disposed of.

DINESH KUMAR SHARMA, J APRIL 5, 2023 St..